

Dispute Chamber

Decision 78/2024 of April 24, 2025

File number: DOS-2021-01763

Subject: Complaint against the Federal Public Service Health regarding processing related to the 'Passenger Locator Form'

The Dispute Chamber of the Data Protection Authority, composed of Mr. Hielke HIJMANS, chair, and Mr. JELLE STASSIJNS and Mr. CHRISTOPHE BOERAEVE, members;

Considering Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation), hereinafter referred to as "GDPR";

Considering the law of December 3, 2017, establishing the Data Protection Authority, hereinafter referred to as "WOG";

Considering the Law of July 30, 2018, on the protection of natural persons with regard to the processing of personal data, hereinafter referred to as "WVP";

Considering the internal regulations, as approved by the House of Representatives on December 20, 2018, and published in the Belgian Official Gazette on January 15, 2019;

Considering the documents of the file;

Has made the following decision regarding:

The complainant:

X, hereinafter referred to as "the complainant";

The defendant:

The Federal Public Service Health, [...], represented by attorneys Mr. Magali Feys and Mr. Sarah Leeman, [...], hereinafter referred to as "the defendant"

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I. Facts and Procedure

1.

The subject of the complaint concerns the use of the "Passenger Locator Form" ("PLF") during the COVID-19 pandemic, whereby individuals residing in Belgium were required to provide certain information after traveling abroad in order to facilitate and effectively organize contact tracing in the event of a possible infection. The PLF was also used for tracking individuals traveling to Belgium from abroad.

In the file, particularly by the Inspection Service, the terms "Passenger Locator Form" and "Passagier Lokalisatie Formulier" or "PLF" are used interchangeably. They are treated as synonyms in this decision.

2.

In its reply, the defendant provided a list of the personal data requested via the PLF at the time of submitting the reply, namely:

- name (first and last name);
- gender;
- date of birth;
- nationality + resident of Belgium;
- address;
- national register number;
- mobile phone number;
- email address;
- date of arrival in Belgium;
- means of transport (airplane, train, boat, bus, motor vehicle, other);
- identification of the transport number (flight number, train number, vessel number, and port of arrival; bus company details);
- whether the traveler belongs to an exception category;

- previous consecutive stays in the past 14 days, namely the location and duration of stay;
- whether the traveler will stay in Belgium for more than 48 hours;
- the address of stay;

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- the number of children under 12 years;
- possession of certificates.

The following data were optionally requested via the PLF:

- passport or ID card number;
- home phone/work phone;
- seat number on the plane or train;
- license plate of the bus or other motor vehicle;
- to which exception category the traveler belongs.

3.

On February 18, 2021, the complainant filed a complaint with the Data Protection Authority against the defendant.

4.

On April 1, 2021, the complaint was declared admissible by the First Line Service based on Articles 58 and 60 WOG and was forwarded to the Dispute Chamber based on Article 62, § 1 WOG.

5.

On April 26, 2021, the Dispute Chamber decided, based on Article 63, 2° and 94, 1° WOG, to request an investigation from the Inspection Service, and in accordance with Article 96, § 1 WOG, the request from the Dispute Chamber for an investigation was forwarded to the Inspection Service, along with the complaint and the inventory of documents.

6.

Also on April 26, 2021, the complainant was informed by the Dispute Chamber that the aforementioned request for an investigation had been forwarded by the Dispute Chamber to the Inspection Service.

7.

On September 30, 2021, the investigation by the Inspection Service was completed, the report was added to the file, and the file was forwarded by the Inspector General to the Chair of the Dispute Chamber (Article 91, § 1 and § 2 WOG).

In its report, the Inspection Service identified the data controller, the defendant, as well as the relevant passages from the privacy policy related to the provision of the “Passenger Locator Form.”¹

Furthermore, the Inspection Service also identified a processor, the non-profit organization SMALS.

The findings of the Inspection Service are presented more concretely in the ‘reasoning’ section of this decision – in light of its readability.

¹ Report of the Inspection Service, pp. 3-6.

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8.

On December 1, 2021, the Dispute Chamber decides, based on Article 95, § 1, 1° and Article 98 WOG, that the file is ready for substantive treatment.

9.

On December 1, 2021, the parties involved are notified by registered mail of the provisions as mentioned in Article 95, § 2, as well as those in Article 98 WOG. They are also informed, based on Article 99 WOG, of the deadlines for submitting their defenses.

10.

On December 1, 2021, the complainant confirms receipt of the previous message by email, thereby accepting all communications regarding the case electronically.

11.

On January 12, 2022, the Dispute Chamber receives the response from the respondent by email.

12.

On February 1, 2022, the Dispute Chamber receives the reply from the complainant.

13.

On February 23, 2022, the Dispute Chamber receives the reply from the respondent.

14.

On October 18, 2024, the parties are formally notified that the hearing will take place on November 5, 2024.

15.

On November 5, 2024, the parties are heard by the Dispute Chamber.

16.

On November 20, 2024, the minutes of the hearing are presented to the parties.

17.

On November 22, 2024, the Dispute Chamber receives some comments from the complainant regarding the minutes, which it decides to include in its deliberation.

18.

On November 26, 2024, the Dispute Chamber receives some comments from the respondent regarding the minutes, which it decides to include in its deliberation.

II. Justification

II.1. The legality of the processing of personal data, including health data, via the PLF – Article 6.1 and Article 9.2 GDPR and Article 34 WVP

II.1.1. Complainant's position

19. One of the grievances of the complainant regarding the Passenger Locator Form specifically concerns the legal basis under Article 34 of the Act of July 30, 2018, concerning the protection of natural persons in relation to the processing of personal data. The complainant disagrees with the transfer of personal data from the PLF to, in particular, police services. These services would process the personal data for investigative and enforcement measures, for example, in the case of non-compliance with certain quarantine obligations.

20. Specifically, the complainant raises the following aspects in his conclusion:

a. The complainant states that the processing and transfer of personal data originating from the PLF by the respondent constitutes a violation of Article 34 WVP.

b. According to the respondent, the PLF serves only a preventive purpose and thus does not fall under the regime of processing aimed at the prevention, detection, or prosecution of criminal offenses, as referred to in Article 35 of the same Act. Nevertheless, the complainant argues that various documents indicate that the data from the PLF were indeed shared with police services. The complainant contends that this practice contradicts the preventive nature of the PLF as stated by the respondent, since the police only act in the context of criminal enforcement and public safety.

c. Furthermore, Article 34, first paragraph, requires that the processing of health data is only permitted if explicitly provided for by law, decree, ordinance, European regulation, or international agreement. The complainant asserts that the respondent refers to the ministerial decision of June 30, 2020, as the legal basis, while this decision does not qualify as one of the regulations listed exhaustively in Article 34. According to the complainant, at the time of the complaint (February 2021), there was NO legal or regulatory basis allowing the processing of medical data via the PLF. The later inclusion of the PLF in the Cooperation Agreement of March 24, 2021, does not detract from this, as this agreement was not in effect at the relevant time.

d. Moreover, no answer is given to the core of the complaint: the transfer of personal data to police services. The complainant points out that according to Article 34, §1, 2° WVP, the processing of medical data is only permissible if it is necessary for the protection of the vital interests of the data subject. However, the transfer to the police does not serve to protect such interests, but rather to enforce and penalize non-compliance with quarantine and testing obligations. This repressive purpose was later confirmed in the Cooperation Agreement of March 24, 2021, which explicitly states that the data

2 Already in the complaint form, the complainant mentions Article 34 WVP and states that health data may only be processed under a formal law – which a Ministerial Decision is not.

to provide support for police enforcement of criminal obligations.

e. Therefore, the complainant asserts that the respondent acted in violation of Article 34 WVP by processing and sharing medical data from the PLF with police and justice before March 2021 without a valid legal basis and without the processing being necessary for the protection of the vital interests of the data subject.

II.1.2. Position of the respondent

21.

In the reply conclusion as well as during the hearing, the respondent elaborates on the legality of the processing that takes place through the collection and further processing of personal data via the PLF in the sense of Article 6.1 and Article 9.2 GDPR. The respondent argues that the processing of personal data via the PLF is in accordance with the legality requirements of the GDPR.

22.

For the processing of ordinary personal data, the respondent relies on Article 6.1.c GDPR, which allows processing when it is necessary to comply with a legal obligation to which the data controller is subject. According to the respondent, this obligation arises from a normative multi-layered framework: internationally based on Article 23 of the International Health Regulations (IHR), European law through, among others, EU Implementing Decision 2021/858, and national law through the Cooperation Agreement of March 24, 2021, as well as the Cooperation Agreement of July 14, 2021.

23.

The respondent emphasizes that the GDPR does not require that the legal obligation always arises from a formal law adopted by a parliamentary assembly, but that the relevant legal instrument must meet the requirements of clarity, precision, and predictability for the data subjects, as evidenced by recitals 41 and 45 of the preamble of the GDPR. In this sense, it considers the relevant Cooperation Agreements sufficiently normatively delineated to meet the legality requirements under Article 6.1.c GDPR.

24.

Regarding the processing of special categories of personal data, specifically health data, the respondent invokes the exceptions provided in Article 9.2, under i and h GDPR.

3 Reply conclusion of the respondent, section 3.2

25.

Article 9.2.i GDPR, first, allows processing when it is necessary for reasons of public interest in the field of public health, such as the protection against cross-border health threats. The respondent refers in this regard to recital 54 GDPR and the statement of the EDPB of March 19, 2020, which confirms that – in the context of the COVID-19 pandemic – processing of health data by competent authorities can take place without the need for the consent of the data subject, provided that it is done in accordance with national legislation that offers appropriate safeguards.

26.

Additionally, the respondent points to Article 9.2.h GDPR as an additional, second legal basis, since the PLF operates within a broader framework of preventive medicine, specifically contact tracing, testing, and quarantine. According to the respondent, the processing of the relevant personal data falls within this context, making this exception to the processing prohibition applicable as well.

27.

In light of the above, the respondent asserts that the processing of both ordinary and special personal data within the framework of the PLF is based on valid legal grounds under Articles 6.1.c and 9.2.i and 9.2.h GDPR, and therefore must be considered lawful in the sense of the GDPR.

28.

Separately, the respondent also responds to the allegations of the complainant regarding Article 34 WVP. According to the respondent, this provision does not apply to the processing of data within the framework of the PLF. The respondent clarifies that the objective of the PLF is preventive health, and

not one of the objectives intended under Article 34 WVP.

II.1.3. Assessment of the Dispute Chamber

a) Context of the COVID-19 pandemic and the position of the respondent

29.

The Dispute Chamber generally recalls the context of the COVID-19 pandemic, which, particularly since March 2020, has led Federal and Regional governments and administrations to take measures in often particularly difficult and life-threatening circumstances over a period of several years. The European legislator also explicitly identified the situation of an epidemic as a relevant circumstance in the application of the GDPR, as stated in recital 46 of its preamble:

4 EDPB, Statement on the processing of personal data in the context of the COVID-19 outbreak, March 19, 2020, available at:

https://www.edpb.europa.eu/sites/default/files/files/news/edpb_statement_2020_processingpersonaldataandcovid-19_en.pdf.

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"Certain types of personal data processing may serve both substantial reasons of general interest and the vital interests of the data subject, for example when the processing is necessary for humanitarian purposes, including monitoring an epidemic and its spread or in humanitarian emergencies, particularly in natural disasters or man-made disasters."⁵ (the Dispute Chamber underscores and emphasizes)

30. This context is important for the interpretation of (the legality of) certain measures taken by the aforementioned governments and administrations, but does not prevent personal data processing from also being conducted in accordance with the law in the event of a pandemic.

31.

Furthermore, the Dispute Chamber particularly notes that the respondent not only demonstrates an extremely constructive attitude within the framework of the administrative procedure at the GBA, but also in its general stance towards data protection legislation.

32.

The Dispute Chamber notes that the respondent has not failed to share numerous internal exchanges with the Inspection Service during its investigation.

33. Moreover, the Dispute Chamber points out that those internal exchanges show that the Data Protection Officer (DPO) of the respondent often provides accurate advice regarding the (proposed) personal data processing and also engages in direct contact with the highest management level at the respondent.

34. The file includes, among other things, email exchanges at the highest management level of the respondent in March 2020, in which a board member states that the GDPR is "not canceled"⁶ by the crisis – and at the same time addresses the DPO to advise on a specific issue. In other words: difficult issues and potential mistakes are addressed, and there is a demonstrable active awareness at the highest level within the respondent regarding data protection.

35. The Dispute Chamber therefore expressly points to the effective implementation that the respondent seeks to give to data protection legislation, with a DPO who proves to have effective influence and authority within the organization – as evidenced by the documents in the file.

5 The Dispute Chamber underscores and emphasizes.

6 Document 15 administrative file, annex "2020-03-18.RE File Healthcare Providers Nurses", in this annex the email dated March 17, 2020: "Le GDPR n'est pas annulé par la crise. On doit être et rester conscient et conscientiser nos collaborateurs [...]"; free translation: "The GDPR is not canceled by the crisis. We must be aware of this and remain so and make our employees aware [...]"

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b) The legality of the processing – the PLF regulated under a Ministerial Decree – the retroactive effect of the Cooperation Agreement of July 14, 2021

36. The Dispute Chamber first addresses the legality of the processing. The infringements noted by the Inspection Service do not explicitly mention Article 6.1 GDPR or Article 9 GDPR in this regard, but

both the complainant and the respondent have addressed the legality of several processing operations related to the PLF in their conclusions and at the hearing. One of the grievances expressed by the complainant in their complaint was, in any case, the legality of the transfer of health data to police services within the Belgian legal order, as Article 34 § 1 WVP explicitly requires a formal legal standard under its first paragraph.⁷ Moreover, the legality of the processing is an essential condition for any processing (cf. Article 5.1.a GDPR).⁸

b.1. Transfer to police services under Article 34 § 1 WVP in conjunction with Article 9 and Article 6.1 GDPR

37.

Regarding the transfer of personal data from the PLF to police services for enforcement measures, a separate assessment of the legality is required. As the Explanatory Memorandum to the Cooperation Agreement of July 14, 2021 explains:

"The retroactive effect concerning the provisions of the PLF aims to provide legal certainty and a legal framework for the measures taken under the ministerial decree of October 28, 2020, with the understanding that the criminal provisions do not have retroactive effect."⁹

38. The Dispute Chamber also refers to the opinion of the Council of State regarding the Cooperation Agreement invoked by the respondent on March 21, 2021. In it, the Council considered the following:

"In this case, that retroactive effect is out of the question since the data exchanged within the framework of this cooperation agreement will enable, in accordance with the legislation of the federated entities, the imposition of criminal sanctions on individuals who do not comply with the obligations regarding quarantine and testing. The wording of paragraph 1 must therefore be revised to prevent any retroactivity, for example by stipulating that the

7 The situations from Article 34, § 1, 2° and 3° WVP are evidently not applicable in this case.

8 EDPB Guidelines 1/2024 on the processing of personal data based on Article 6.1.f GDPR, v.1.0, October 8, 2024, available at:

https://www.edpb.europa.eu/system/files/2024-10/edpb_guidelines_202401_legitimate_interest_en.pdf (currently in English), see par. 1.

9 Cooperation Agreement July 14, 2021, Explanatory Memorandum, Article 33, accessible at: https://www.ejustice.just.fgov.be/mopdf/2021/07/23_3.pdf#page=114.

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cooperation agreement enters into force on the date of publication of the last consent text."¹⁰ (the Dispute Chamber underscores and emphasizes)

39. As the complainant rightly points out, the objective of transmitting personal data to police services at the time of filing his complaint is not legally regulated.¹¹

The transmission of this data is particularly relevant when certain quarantine obligations are not respected, which implies an undeniable link to a health-related data as referred to in Article 9 GDPR.¹²

40. As the complainant rightly states, in Belgium, according to Article 34 WVP (as implementation of Article 9.4 GDPR), there is an explicit legal limitation that expressly emphasizes that such health data may only be shared in three cases: (i) by formal legal norm, (ii) to safeguard the vital interests of the data subject, or (iii) when the data subject has evidently made the data public themselves.¹³

41.

Regarding the aforementioned Ministerial Decree of October 28, 2020, which was in effect at the time of the complaint – to which no retroactive effect was granted or could be granted concerning the transmission to police services – a clear problem can thus be identified.

Indeed, Article 34 WVP requires a formal legal norm for the processing of personal data (see also *infra*, point b.2 of this section regarding the principle of legality that applies more broadly in Belgium).

42.

As the respondent rightly points out in her defense,¹⁴ the Dispute Chamber is not competent to assess a norm itself against the higher legal framework; it is, however, part of the

task of the Dispute Chamber to assess the legality of specific personal data processing against Article 6.1 GDPR and 9.2 GDPR (and similarly Article 34 § 1 WVP) in accordance with its powers under Article 4 WOG. To illustrate, the Dispute Chamber refers to a conclusion of the Advocate General at the Court of Cassation:

“In particular, from the applicable provisions of the General Data Protection Regulation (GDPR)(12)) (art. 6.1, 77 GDPR) and of the GBA Act(13) (art. 100, § 1) it follows that the GBA can assess the existence of the asserted legality grounds, such as the consent of the data subject or a

10 Advice RvST no. 69.000/VR, March 16, 2021, para. 34.

11 The Ministerial Decree of October 28, 2020, containing urgent measures to limit the spread of the coronavirus

COVID-19, does mention the law of August 5, 1992, on the police service, citing Articles 11 and 42.

12 Even if a person is not infected with the coronavirus COVID-19, a mandatory quarantine in certain circumstances can indeed indicate risky behavior or an established health risk.

13 See for the last point: CJEU Judgment of October 4, 2024, Schrems v. Meta Platforms Ireland Ltd., C-446/21.

14 Inter alia, reply conclusion of the respondent, paras. 70-71.

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agreement in which the concerned party is involved. “15 (the Dispute Chamber underscores and emphasizes)

43. The complainant states in his reply that various documents in the file indicate that the sharing with the police services is effectively taking place.¹⁶ One of the objectives of collecting and processing data in the PLF was to enforce quarantine measures by transmitting data from the PLF to police services during contact tracing via the Communities. It does not appear from this file that the transmission was effectively carried out by or through the respondent at the time of the complaint, as the DPO explicitly stated that there was no legal basis to grant police services direct access to the database containing PLF data.¹⁷

44. The Dispute Chamber cannot determine in this file what role the respondent played in this context. To the extent that the transmission to the police services was a processing operation that effectively took place before the legal framework established in the Cooperation Agreement of March 24, 2021, this transmission had no legal basis and could therefore not be justified.

b.2. Legality of processing (health) data PLF under Article 6.1 and Article 9.2 GDPR

45. Personal data, including sensitive data such as health data (Article 4.15 GDPR), were collected and further processed via the PLF, for which, in accordance with Article 9.1 GDPR, there is a general prohibition on processing. It is essential to specifically consider the context and purpose in which certain personal data are collected. In this context, personal data were collected for the purpose of contact tracing and taking potential quarantine measures, whereby police enforcement based on this data ultimately became possible. As the EDPB has also clarified, such data – which reflect exposure to a specific health risk due to visiting a region – can clearly be classified in their context as health data falling under Article 9 GDPR.¹⁸ Such data are therefore directly or indirectly related to the health status of the concerned party, which is also evident from the defense of the

15 See mutatis mutandis the authority of the GBA and its Dispute Chamber to assess Article 6.1.b GDPR: Conclusion of the Advocate General in Cass. January 10, 2025, C.21.0449.N (conclusion dated December 9, 2024), available via

<https://juportal.be/content/ECLI:BE:CASS:2025:CONC.20250110.1N.5?HiLi=eNpLtDK2qs60MrAutjI2sFJKT01PLUvNK05KLU>

7OSC3KzcxLL04sLckvyixJzSxRss60MoSqdHd1dw1z9Qt2cg129nAN8vX0cw92DA3xD/IMcfUMAak0gqkkYGYtAFHdLHE=

§2.2.2.

16 Conclusion of the complainant, p. 4, referring to document 10.c FLOW PLF SMS_UITZ and document 10.d Appendix 4_PLF FLOW EXPLANATORY.

17 Document 15 administrative file, appendix “2020-12-02.RE Passenger Locator Form 504 PLF

police control quarantine”: “THERE is no legal basis on which we can rely to grant police services access to (certain) data in [...]”

18 EDPB, Guidelines 3/2020 on the processing of health data for scientific research in the context of the COVID-19 outbreak, April 21, 2020, § 8, whereby the EDPB indicates that the following information falls under the category of health data: “[...] information that amounts to data about health due to its use in a specific context (such as information about a recent trip or stay in a region affected by COVID-19 [...])”

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the respondent, which indicates a legal basis under Article 9.2 GDPR. The Court of Justice has also clarified that information from which sensitive data of a data subject can be indirectly inferred qualifies as personal data within the special categories of personal data.¹⁹

These elements demonstrate that a legal ground in the sense of Article 9.2 GDPR is necessary.

46. As the Dispute Chamber has previously ruled²⁰, the processing of special categories of personal data in the sense of Article 9.1 of the GDPR must be based on a legal ground under Article 9.2 of the GDPR, read in conjunction with Article 6.1 of the GDPR.²¹ This is also confirmed by Recital 51 of the GDPR, which states the following regarding the processing of special categories of personal data: “In addition to the specific provisions for that processing, the general principles and other rules of this Regulation shall apply, in particular with regard to the conditions for lawful processing.”²² In an earlier decision, the Dispute Chamber also explained this context, particularly in the context of the coronavirus pandemic.²³ In this context, the Dispute Chamber also refers to the judgment of the Court of Justice in *Privacy International* of October 6, 2020.²⁴

47.

The Dispute Chamber emphasizes that the respondent can only invoke the legality basis of Article 6.1.c GDPR and the exceptions provided for in Article 9.2.i and Article 9.2.h of the GDPR – the provisions which it invokes in its defense²⁵ – if it demonstrates:

(i) That there is a significant reason for preventive medicine, including the provision of healthcare and the management of healthcare systems and services (in the case of Article 9.2.h) and that there is a significant reason for

¹⁹ CJEU Judgment of August 1, 2022, *Vyriausioji tarnybinės etikos komisija*, C-184/20, *inter alia*, para 127.

²⁰ Cf. Dispute Chamber decision on the merits 76/2021, § 33, and Dispute Chamber decision on the merits 47/2022, § 81.

²¹ See in this regard: GEORGIEVA, L. and KUNER, C., “Article 9. Processing of special categories of personal data” in KUNER, C., BYGRAVE, L.A. and DOCKSEY, C., *The EU General Data Protection Regulation (GDPR). A Commentary*, Oxford University Press, Oxford, p. 37: “The Commission has stated that the processing of sensitive data must always be supported by a legal basis under Article 6 GDPR, in addition to compliance with one of the situations covered in Article 9(2). The EDPB has also stated that ‘If a video surveillance system is used in order to process special categories of data, the data controller must identify both an exception for processing special categories of data under Article 9 (i.e. an exemption from the general rule that one should not process special categories of data) and a legal basis under Article 6.’”

Free translation: “The Commission has stated that the processing of sensitive data must always be supported by a legal basis under Article 6 GDPR, in addition to compliance with one of the situations covered in Article 9(2). The EDPB has also stated: ‘If a video surveillance system is used to process special categories of data, the data controller must identify both an exception for processing special categories of data under Article 9 (i.e. an exemption from the general rule that one should not process special categories of data) and a legal basis under Article 6.’”

²² Own emphasis by the Dispute Chamber.

²³ Decision of the Dispute Chamber 48/2022 of April 4, 2022, §§90 et seq.

²⁴ CJEU Judgment of October 6, 2020, *Privacy International*, C-623/17, specifically para. 68 therein.

²⁵ Reply conclusion of the respondent, specifically para. 34-35.

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public interest is in the field of public health (in the case of Article 9.2.i):

(ii) That there is a legal provision upon which the respondent can validly rely in accordance with Articles 6.1.c, 6.3, and 9.2.h respectively 9.2.i of the GDPR;

(iii) That the processing involved is necessary to comply with the legal obligation invoked in accordance with Article 6.1.c GDPR; as well as necessary for reasons of public interest in the field of public health in accordance with Article 9.2.h respectively Article 9.2.i GDPR.

48. Regarding the first constitutive element (i), the GBA has previously decided that there can be no doubt that combating the COVID-19 pandemic must be considered a “compelling public interest in the field of public health” within the meaning of Article 9.2.i GDPR. The preventive measures that the entities of the State must take to safeguard this public interest, in the sense of Article 9.2.h GDPR, can also be regarded as such. As the respondent rightly points out, this is explicitly stated in Recital 46 of the GDPR, which refers to “[the monitoring] of an epidemic and its spread” as a “serious reason of public interest.”

49. The second constitutive element (ii) concerns the existence of a legal provision upon which the processing in question is based in accordance with Articles 6.1.c and 9.2.i respectively 9.2.h of the GDPR.

50. The respondent states that the processing (the collection and further processing of personal data via the PLF) is based on a Ministerial Decision which originates from a legal norm, namely a Cooperation Agreement of July 14, 2021, and thus justifies the legality of its processing under Article 6.1.c GDPR and Article 9.2.i respectively Article 9.2.h GDPR. It is important to mention that Recital 41 of the preamble of the GDPR emphasizes that the legislative measure must be “clear and precise,” as well as “predictable [...] for those to whom it applies.”²⁶

51. At the time of the filing of the complaint in this case by the complainant (in February 2021), there was no Cooperation Agreement yet, and the processing was based on a Ministerial Decision.²⁷ In Belgium, the principle of legality applies, i.e., a formal legality requirement²⁸ which restricts fundamental rights such as privacy and

26 See also CJEU judgment of June 21, 2022, *Ligue des droits humains v. Council of Ministers*, C-817/19, §117; CJEU judgment of July 16, 2020, *Schrems II*, C-311/18, §176.

27 On February 18, 2021, the PLF was regulated by Ministerial Decision of October 28, 2020, containing urgent measures to limit the spread of the coronavirus COVID-19, which was last amended on January 26, 2021; see also the privacy statement of the respondent as quoted in the report of the Inspection Service, p. 3.

28 Constitutional Court judgment of June 1, 2023, no. 84/2023, §B.16.10
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Data protection can only be limited in accordance with Article 22 of the Constitution by a formal legal norm.²⁹ A delegation is possible when it is sufficiently delineated, which is not the case in the legislation on which the Ministerial Decree relied for the disputed Cooperation Agreements, as argued by the defendant.³⁰ The defendant, as an administration, cannot in itself be the body that assumes a regulatory authority.³¹

52. The Constitutional Court has once again framed the conditions and context of the principle of legality in the Belgian legal order in 2023 – specifically in a case concerning processing in the context of the COVID-19 pandemic:

“Article 22 of the Constitution reserves to the competent legislator the authority to determine in which cases and under what conditions the right to respect for private life may be curtailed. It thus guarantees to every citizen that no interference with the exercise of that right can take place except in accordance with rules adopted by a democratically elected deliberative assembly.

[...]

Consequently, the essential elements of the processing of personal data must be laid down in the law, the decree, or the ordinance itself.”³² (the Chamber of Disputes underscores and emphasizes)

53. However, the Cooperation Agreement of July 14, 2021, was granted retroactive effect by the inter-federal competent legislators regarding the PLF processes, and this back to July 10, 2020 (cf.

Article 33 § 4 of the Cooperation Agreement).³³

54. Allowing the retroactivity of a legal norm in data protection law can be permissible within the Belgian constitutional order within a certain framework, namely in the context of emergencies that must be managed in the general interest (infra, judgment

29 See RvST, Legislative Section, advice no. 69.336/VR of May 17, 2021.

30 See Reply Conclusion of the defendant, para. 15 et seq., specifically the reference to the Act of December 31, 1963, concerning civil protection; the Ministerial Decree of October 28, 2020, refers to the Act of May 15, 2007, concerning civil safety.

31 See Knowledge Center GBA, advice 124/2021 of July 12, 2021, available at:

<https://www.gegevensbeschermingsautoriteit.be/publications/advies-nr.-124-2021.pdf>, §66: “Article 21 of the draft cooperation agreement stipulates in fine that the precise data to be collected via the PLF is determined by the Federal Public Service Health, which must publish the PLF model on its website. The constitutional principles regarding the delegation of powers do not allow such a delegation of regulatory authority to the administration, which by definition does not assume its responsibility to Parliament. The draft must be revised to explicitly state that the precise data collected via the PLF is determined by the King (in a royal decree) or in an executive cooperation agreement.”

32 GWH judgment of June 1, 2023, no. 84/2023, §B.16.9.

33 Summary conclusion of the defendant, p. 10.

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Constitutional Court No. 84/2023). However, this Belgian context cannot detract from the higher European legal standards, including the GDPR, which states that the legal basis in the sense of Article 6.1.c GDPR must be clear and foreseeable.

55. The Data Protection Officer (“DPO”) had already raised questions in July 2020 regarding the GDPR-compliant nature of the PLF,³⁴ and the DPO had already pointed out in July 2020 that a Cooperation Agreement would provide legal certainty in order to ensure a solid legal basis for the lawfulness of the processing.³⁵ The Dispute Chamber notes here that between the internal making of this remark about the Cooperation Agreement and the first use of the PLF on the one hand, and the ultimately concluded Cooperation Agreement of March 24, 2021, on the other hand, about 8 months have elapsed; the Cooperation Agreement of July 14, 2021, which grants retroactive effect, moreover occurs one year after the initial use.³⁶ This does not, of course, mean that the duration for drafting the Cooperation Agreement is blameworthy to the respondent.

56. There is no ruling from the Constitutional Court regarding the lawfulness of the Cooperation Agreement of March 24, 2021, or the Cooperation Agreement of July 14, 2021, which pertain to (the determination of the essential elements for) processing via the Passenger Locator Form. There is, however, a ruling from the Constitutional Court regarding the permitted retroactivity³⁷ of the Cooperation Agreement of March 12, 2021, concerning the registration of vaccination data in Vaccinnet. In this latter case, the circumstances were different from those of the PLF.

57.

Moreover, the period between the first initial processes and the ultimate Cooperation Agreement was evidently shorter than between the initial use of the PLF and the Cooperation Agreement of March 24, 2021, and certainly that of July 14, 2021. In the case of the assessment of the Cooperation Agreement of March 12, 2021, this played a role in the considerations of the Constitutional Court when determining the permissible nature of the retroactivity. The Constitutional Court specifically stated:

34 Document 15 administrative file, annex “2020-07-14.RE 460 Public Health Passenger Locator Form.msg”, email of July 14, 2020, from the DPO, which states: “I hear that the form has meanwhile been put into use... However, we are by no means GDPR-compliant. Can this point regarding the legal basis (and thus the legal authority PHA) be further addressed?”

35 Document 15 administrative file, annex “2020-07-24.RE status authority SANIPOINT in relation to PLF.msg”, email from the DPO dated July 24, 2020: “A cooperation agreement indeed provides legal certainty, unlike a protocol.”

36 The Cooperation Agreement of March 21, 2021, stipulated regarding the entry into force in its Article 10 § 1: “This cooperation agreement shall enter into force on the date of publication of the last

legislative act consenting to this cooperation agreement.”; regarding the retroactive effect of the Cooperation Agreement of July 14, 2021 (cf. Article 33 therein), see below.

37 GwH 84/2023, June 1, 2023, available at: <https://www.const-court.be/public/n/2023/2023-084n.pdf>, par. B.50.

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“In the context recalled in B.2, it must be emphasized that the cooperation agreement of March 12, 2021, was concluded within a period of less than three months, simultaneously with the start of the vaccination campaign in January 2021 under circumstances of urgent necessity, in order to combat the COVID-19 pandemic.”³⁸ (the Dispute Chamber underlines and emphasizes)

58. In this sense, it cannot be effectively argued that there was a legal basis in February 2021 for the processing via the PLF, as the Constitutional Court has not ruled on the aspects of the invoked Cooperation Agreement that are relevant to this case, and furthermore – based on the considerations of the Court in the aforementioned judgment – it is also not established that the Court would regard the retroactivity in this case as constitutional.

59. The Dispute Chamber is then of the opinion that – even if the retroactivity of the legal norm is granted by the Cooperation Agreement of July 14, 2021 – it still appears that the complaint was filed on February 18, 2021.

60. In accordance with Article 4 WOG, the Data Protection Authority is competent for the application of the GDPR, including Articles 5.1.a, 6.1, and 9.2 thereof.

The GDPR is a regulation that has direct effect in Belgium. When the complaint of February 18, 2021, is thus assessed by the Dispute Chamber of the GBA, the GDPR must be applied autonomously under the primacy³⁹ of EU law, whereby any retroactivity provided by the Belgian inter-federal legislator – whether or not validated as such by the national⁴⁰ constitutional court – would not necessarily be compatible with the requirements enshrined in the European norm.⁴¹

The exclusive, final assessment of the interpretation of both the Charter and the GDPR lies in this context with the Court of Justice of the European Union.⁴²

61. It is established that there was no legal basis on February 18, 2021, for the processing of personal data. While there was a Ministerial Decision, on which the

38 GWH 84/2023, par. B.49.1.

39 CJEU, February 5, 1963, *Van Gend & Loos*, 26/62; CJEU, July 15, 1964, *Costa v ENEL*, 6/64.

40 See also CJEU, December 17, 1970, *Internationale Handelsgesellschaft*, 11/70, §3: “alleged infringements of fundamental rights as laid down in the constitution of a Member State or on the principles of the constitutional order of a Member State, [cannot] affect the validity of a Community act or the functioning of that act on the territory of that state.”; also CJEU, March 9, 1978, *Simmenthal*, 106/77; CJEU, June 24, 2019, *Poplawski*, C-573/17.

41 Regarding the direct effect of EU law and its primacy, see DE BAERE, G. and MEEUSEN, J., *Fundamental Principles of European Union Law*, 2nd ed., Antwerp, Larcier Intersentia, 2024, parn. 3-12 to 3-42.

42 Article 19 Treaty on European Union, and Article 267 Treaty on the Functioning of the European Union.

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the respondent invoked as a legality basis. However, as the Knowledge Center of the GBA has already established: the Ministerial Decree is not a norm of legislative rank that establishes the essential elements of data collection via the PLF and its registration in the PLF database.⁴³ In this sense, a violation of Article 6.1 and Article 9.1 GDPR can indeed be established.

62.

Furthermore, the Disputes Chamber points out that since the summer of 2020, the Data Protection Officer had indicated that a Cooperation Agreement could potentially provide a good legal basis for the intended processing.⁴⁴

63. For the sake of completeness, the Disputes Chamber states that, insofar as the respondent

invokes this, the public interest as a legality basis under Article 6.1 GDPR cannot be invoked partially or subsidiarily alongside the legal obligation. If the respondent had intended to designate this legal basis – given the specific emergency situation of the coronavirus pandemic – it should have done so primarily and from the outset (for example, pending a formal legal arrangement).

Also for the sake of completeness, the Disputes Chamber notes that several international agreements and treaties (such as the International Health Regulations cited by the respondent) cannot qualify as sufficiently precise and qualitative norms in light of the principle of legality, especially since these provisions merely regulate general agreements (with phrases such as “Subject to applicable international agreements and relevant articles of this Regulation, a State that is a Party may request for the benefit of public health [...]”).⁴⁵

64. The Disputes Chamber considers the exceptional circumstances of the coronavirus pandemic and notes that the documents provided by the respondent show that the respondent also thought in advance about the technical and organizational measures it took. It is particularly relevant for the Disputes Chamber that the Data Protection Officer (DPO) could play a very active role in this phase of the pandemic and was in direct contact with members of the respondent's management. The fact that the circumstances of drafting Cooperation Agreements are extremely complex, as mentioned during the hearing by the respondent, is not a justification but rather important context for the assessment of this violation.

The respondent has transparently communicated with the GBA in this matter and

43 See advice no. 124/2021.”. See also Council of State, advice no. 68.978 of March 16, 2021.

44 Document 15 administrative file, attachment “2020-07-24.RE status authority SANIPORT in relation to PLF.msg”, email from the DPO dated July 24, 2020: “A cooperation agreement indeed provides legal certainty, unlike a protocol.”

45 Reply conclusion of the respondent, para. 96, where the respondent loosely translates from Article 23 of the International Health Regulations; the text is underlined and emphasized by the Disputes Chamber.

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extensively cooperated by providing many internal documents. This cannot in itself rectify the legality, but these circumstances are indeed relevant in assessing the seriousness and intent of the violation – which is relevant for determining the sanction.

65. For all these reasons, the Disputes Chamber finds that the respondent violated Article 6.1 GDPR and Article 9.1 GDPR (due to the lack of adequate legal basis in the sense of Article 9.2.h GDPR), and, given the context, issues a reprimand for this aspect.

II.2. Minimal Data Processing, the Principles of Data Protection by Design and Default Settings, and the Accountability Obligation

II.2.1. Investigation by the Inspection Service

66. Firstly, the Inspection Service refers to a violation of the principle of minimal data processing: the respondent has not sufficiently demonstrated why all collected personal data via the Passenger Locator Form (PLF) are necessary for the intended purposes. According to the Inspection Service, this constitutes a violation of Article 5.1.c and Article 5.2 of the GDPR. Additionally, the Inspection Service finds that the lack of accountability regarding the necessity of requesting certain data constitutes a violation of Article 24 and Article 25 of the GDPR concerning accountability and data protection by design and default settings.

67. Secondly, the Inspection Service finds a violation of the principle of storage limitation: the retention period of the personal data is, according to the Inspection Service, not sufficiently justified. The respondent has not provided evidence as to why the chosen period is necessary, despite explicit questions from the Inspection Service. This constitutes a violation of Article 5.1.e and 5.2 of the GDPR, as well as Article 24 and Article 25 of the GDPR.

II.2.2. Position of the Complainant

68. The complainant states in his reply conclusion, summarized, the following:

a. The complainant first addresses the international framework of the PLF, specifically where this

would be framed according to the respondent in internationally accepted instruments included in the 'International Health Regulations' (IHR). The complainant notes in his reply conclusion that only a few countries in the European Union use the European Digital Passenger Locator Form.

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In this regard, he states that in the Belgian version of this PLF – unlike in the European version – significantly more personal data must be shared. The complainant refers, among other things, to exact places of residence (where the European version refers to regions); the flight number and seat number must also be filled in as mandatory on the Belgian PLF.

b. Furthermore, the complainant generally states that the disproportionate nature is also evident from the fact that the use of the PLF had no significant impact on the infection rates.

c. The complainant also addresses certain aspects of the PLF that were legally regulated in a Cooperation Agreement of March 24, 2021 – which the respondent pointed out in her response conclusion. The complainant states that he submitted his complaint beforehand, namely on February 18, 2021. The complainant asserts that he considers the sharing of data from the PLF with certain entities to be “totally disproportionate and illegitimate.”

d. The complainant also disputes that the retention period for data from the PLF of 28 days is necessary. For the complainant, there is no explanation for why – in light of the respondent's argumentation referring to a period of 14 days in which one can potentially test positive for COVID-19 – a period of 28 days would be chosen.

e. Furthermore, the complainant agrees with the findings regarding violations that the Inspection Service identified in its report.

II.2.3. Position of the respondent

69. Firstly, the respondent formulates a preliminary remark in which she disputes the approach of the Inspection Service whereby any violation of a GDPR provision is automatically qualified as a violation of Articles 24 and 25 GDPR. According to the respondent, the Inspection Service incorrectly considers Article 25 GDPR as a general duty of care, while it actually entails an obligation to take technical and organizational measures in the design of processing. Article 25 cannot therefore be applied analogously as Article VI.104 WER. The premise that any violation of Articles 5 to 23 GDPR also constitutes a violation of Articles 24 and 25 is, according to the respondent, legally incorrect and inconsistent with the systematics and objectives of the GDPR.

70. The respondent then summarizes her arguments regarding “the violation of the principle of data minimization, the accountability obligation, and ‘data protection by design’ and ‘data protection by default’”:

a. The inspection report concluding that there is a violation of the GDPR is, according to the respondent, not substantiated. The respondent refers to the finding of the Inspection Service that the data controller does not demonstrate why the personal data are necessary for the purposes for which they are processed. The respondent states that she “can hardly [defend herself] against such a summary accusation from the Inspection Service. The violation of which [the respondent] is accused cannot therefore be upheld.”

b. The respondent claims to have provided the necessary information in response to questions from the Inspection Service, and thus has fulfilled the obligation to cooperate.

c. The respondent states that the processing of personal data took place based on an international legal obligation and in a proportional manner, referring to the “International Health Regulations” (“IHR”). The respondent asserts that the article “is an integral part of the positive law in Belgium” and further states: “To facilitate the correct implementation of the aforementioned provisions, the WHO has developed a standard document, the Passenger Locator Card. The PLF is entirely based on this standard document.”

Additionally, the respondent refers to EU Implementing Decision No. 2021/858 of May 27, 2021, which establishes the “minimum dataset [that must be included in the EU-PLF and, where provided, the national PLF of a Member State].” In this context, the respondent states that in light of Article 5.1.c GDPR, it must be assessed whether the intended processing is strictly necessary. The respondent asserts that she is convinced that the collection in the context of the PLF is “proportional when the

purposes of the processing are weighed against the rights of the data subjects.”

71. Furthermore, the respondent presents a number of defenses regarding the “violation of the principle of storage limitation, the accountability obligation, and data protection by design and by default”:

a. The respondent again states that the inspection report concluding that there is a GDPR violation is not substantiated, referring to the “very summary manner” of the formulated findings.

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b. The respondent again claims to have provided the necessary information in response to questions from the Inspection Service, and thus asserts compliance with the duty to cooperate.

c. The respondent then states that the retention periods it applies are “indeed necessary”:

“The personal data requested in the PLF are kept in the context of contact tracing, testing, and quarantine. In order to create a legislative framework for this contact tracing, testing, and quarantine, a cooperation agreement was concluded between the federal government and the federated entities, namely the Cooperation Agreement of August 25, 2020. . . A retention period of 28 days is applied considering that an infection can occur within a period of 14 days after contact with another person who tested positive for the COVID-19 virus. If one tests positive on the last day of this 14-day period, a new period of 14 days begins for the person who had contact with the individual who tested positive on the last of the 14 days. In light of the above, the personal data is no longer useful in the context of the PLF after 28 days. For that reason, [respondent] applies a retention period of 28 days, which is fully in line with the epidemiological circumstances of the coronavirus COVID-19, as also supported by various scientific advisory bodies. [Respondent] thus applies retention periods that are still supported by scientific reality. This reasoning is also fully elaborated by [respondent] in the explanatory memorandum of the Cooperation Agreement of July 14, 2021.”

II.2.4. Assessment of the Dispute Chamber

72. As a second part of its assessment, the Dispute Chamber addresses the aspects related to minimal data processing (Article 5.1.c GDPR) as well as storage limitation (Article 5.1.e GDPR) which the Inspection Service raised. These are aspects closely related to the grievances of the complainant. The Inspection Service states that the respondent does not argue why certain data is necessary, and therefore believes it can derive a violation of Article 24, in conjunction with Article 5.2 GDPR, specifically because the respondent does not justify why certain personal data collected via the PLF would be necessary for the purposes of processing.

a) Opinions 27/2021 and 124/2021 of the Knowledge Center of the GBA

73. In this context, the Dispute Chamber first points out that the (then) Knowledge Center of the GBA addressed the legal aspects of the PLF and the inclusion of personal data in a PLF database in both opinion 27/2021 of March 17, 2021, and in its opinion 124/2021 of July 12, 2021. The Dispute Chamber wishes to reiterate several elements from the latter opinion.

74. It should be noted that opinion 124/2021, which the Knowledge Center prepared in this regard, deals with a legislative initiative that dates from after the filing of the complaint and the disputed use of the PLF. Nevertheless, some elements are extremely pertinent for the analysis in this file.

75. The Knowledge Center first recalled in the opinion that “any interference with the right to respect for the protection of personal data, and certainly when it involves a significant interference, is only permitted if it is necessary and proportionate to the pursued objective (or objectives) and if it is framed by a norm that is sufficiently clear and precise, and whose application can therefore be foreseen by the individuals concerned. Pursuant to Article 22 of the Belgian Constitution, the “essential elements” of data processing that cause a public interference with the right to privacy must be established through a formal legal norm (law, decree, or ordinance).”⁴⁶

76. In addition, the Knowledge Center emphasized in the same opinion that the essential elements that must be included in a PLF can “vary depending on the purpose and the circumstances that justify the mandatory completion of the PLF.”⁴⁷ In other words: the data collected through the PLF may differ depending on the characteristics of the crisis situations (particularly the necessary elements in light of a pandemic).

77. In that context, the Knowledge Center also emphasized that the specific purposes of the collected

personal data must be described in accordance with the principle of purpose limitation (Article 5.1.b GDPR).⁴⁸ Specifically, the Knowledge Center raised questions regarding several collections related to a) the identification and contact details of co-travelers, b) the information regarding the “will of the data subject to stay in Belgium” where there was already another question regarding the intended duration of stay in

46 Knowledge Center GBA, opinion 124/2021, §56.

47 Knowledge Center GBA, opinion 124/2021, §59.

48 Knowledge Center GBA, opinion 124/2021, §61.

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Belgium, c) the reasons for the stay in Belgium when the parties involved do not invoke an exemption provision to avoid filling out/providing the PLF, and d) the reasons for the specific need to collect (foreign) places of residence.⁴⁹

78.

Furthermore, the Knowledge Center has clarified that the delegation by the legislator to the Federal Public Service (FPS) Health, thus the respondent in the present case, to collect certain data through that FPS does not align with the constitutional principles regarding the delegation of powers. The Knowledge Center states that this must be established by the King or in an executive cooperation agreement.

79.

Additionally, the Knowledge Center has specifically emphasized that the retention period of 28 days, as ultimately established in the Cooperation Agreement of July 14, 2021, seems proportionate to it.⁵⁰

80. The Dispute Chamber refers to the elements from the advice of the Knowledge Center and points out that the purposes for collecting specific personal data must be established in advance, and that a data controller – also in light of respecting the principle of data minimization as per Article 5.1.c GDPR – should only request those personal data that are necessary for the purposes of the PLF.

b) The grievances of the complainant and the findings of the Inspection Service regarding the “necessary” nature of the collected personal data

81.

The Dispute Chamber notes that the respondent indeed provided a list to the Inspection Service in which it argued for each personal data requested via the PLF why this personal data was relevant – within the context of a broader investigation where other questions were also directed to the respondent by the Inspection Service. This list is reiterated in the investigation report of the Inspection Service:

49 Knowledge Center GBA, advice 124/2021, §65.

50 Knowledge Center GBA, advice 124/2021, §68.

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82.

In this case, the Dispute Chamber finds that for each type of collected personal data, a justification is provided by the respondent to the Inspection Service. The latter indicates in its report that “however, the VV does not demonstrate why all that personal data is necessary for the purposes for which it is processed.”

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In this regard, the respondent states in its reply conclusion: “The concluding party finds it difficult to defend itself against such a summary accusation from the Inspection Service.”⁵¹

83. In his reply conclusion, the complainant indicated that a significant number of data are not requested in other European countries that use the PLF. Additionally, he points out that at the time of filing the complaint, certain data were requested that did not need to be shared “in the general European Digital Passenger Locator Form,” referring to the flight number, seat number during the

flight, places of residence, and the address during a quarantine period in Belgium. Furthermore, the complainant points out that sharing with various health actors would not be legitimate and proportional. Finally, the complainant also states that the 28-day retention period would be disproportionate.

84. Regarding these points, the respondent first argues that 19 of the 27 EU Member States use a variant of the PLF, making the complainant's argument factually incorrect.⁵² Additionally, the respondent clarifies that in accordance with the European standards regarding the PLF, and specifically the Implementing Decision 2021/858 of the European Commission, the vast majority of the same data were indeed deemed necessary to be requested in the context of the use of the PLF, while it was also clarified that more data could be collected by the Member States (for example, in the context of the national contact tracing strategy).⁵³ Furthermore, the respondent states that sharing with various actors is legally regulated and that it has justified why the processing is necessary for managing the pandemic and is therefore not illegitimate and disproportionate.⁵⁴ Finally, the respondent asserts that there is scientific evidence justifying why the 28-day period is proportionate.⁵⁵

85. In summary, the respondent has addressed each of the specific grievances of the complainant in its conclusion and – as far as possible – the general findings of the Inspection Service.

c) Assessment by the Dispute Chamber – opportunity to dismiss

86. The Dispute Chamber finds that the investigation by the Inspection Service has not identified sufficient elements that contradict the respondent's justification for collecting and further processing personal data via the PLF. It is true that it is generally up to the data controller to take appropriate technical and organizational measures under Articles 24 and 25 GDPR.

51 Reply conclusion of the respondent, par. 94.

52 Reply conclusion of the respondent, par. 77.

53 Reply conclusion of the respondent, par. 78-80.

54 Reply conclusion of the respondent, par. 81-82.

55 Reply conclusion of the respondent, par. 84-85.

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to comply with the fundamental principles of the GDPR, but concrete violations of principles must be demonstrated.

87.

Regarding the allegations concerning the accountability obligation (Article 5.2 GDPR) and the obligations under Articles 24 and 25 GDPR, the Dispute Chamber considers the following.

88. The Inspection Service bases its findings on the alleged incomplete provision of information by the data controller. However, the failure to respond or the incomplete response to requests does not, in itself, suffice to establish a breach of Articles 5.2, 24, or 25 GDPR. While these articles stipulate that the data controller must take appropriate technical and organizational measures and must be able to demonstrate compliance with the fundamental principles of the GDPR (cf. Article 5.1 GDPR), they do not constitute a general standard of care that is automatically violated in the event of any ambiguity or gap in the provision of information.

89. Article 5.2 GDPR (the accountability obligation) requires the data controller to demonstrate that it has complied with the provisions (specifically the fundamental principles) of the GDPR. Articles 24 and 25 GDPR specify this obligation by requiring that appropriate safeguards be built in at the design stage and by default settings of the processing to effectively implement the GDPR principles—such as data minimization and storage limitation. Therefore, the data controller must be able to demonstrate which measures have been taken to, for example, process only necessary data and protect the rights of data subjects. However, the mere fact that the responses provided to the Inspection Service appeared incomplete in demonstrating compliance with other (substantive) principles does not, in itself, indicate that the aforementioned obligations have been violated *ipso facto*. In other words, to confirm a breach of Articles 5.2, 24, or 25 GDPR, concrete violations of compliance with those provisions must be demonstrated.

90. As the data controller itself noted, the view that any (alleged) violation of a GDPR provision automatically also constitutes a violation of the aforementioned provisions is not the objective of these provisions. A mere lack of (complete) information provision can at most indicate a possible underlying

non-compliance, but does not, by itself, lead to an independent breach of the aforementioned articles. The Court of Justice has also recently confirmed that a negative fact does not automatically mean that a norm has been violated: a data breach does not, in itself, imply that the security obligation of Article 32 GDPR has been violated, unless it is shown, after concrete assessment, that inadequate measures were taken. The Court of Justice clarified:

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“Consequently, Articles 24 and 32 GDPR cannot be understood to mean that the mere fact that unauthorized disclosure of or unauthorized access to personal data has occurred by a third party is sufficient to conclude that the measures taken by the relevant data controller were not appropriate within the meaning of these provisions, without the latter being given the opportunity to provide counter-evidence.”

91.

Later, as mentioned above, there was also a legal regulation for the collection and processing of data via the PLF, regarding which the then Knowledge Center of the GBA was able to provide advice. In this context, it was also specifically addressed why certain data were requested—as mentioned by the respondent in her conclusion. For example, the period of 28 days within the principle of storage limitation (Article 5.1.e GDPR) is framed in that context, referring to the scientific justification for the choice of 28 days as 2 x 14 days.

92.

The Dispute Chamber therefore rules that no breach of Articles 5.2, 24, and 25 of the GDPR can be established. Regarding the grievances of the complainant, the respondent has provided an effective accountability in her conclusions and at the hearing. It should be noted that the Dispute Chamber has already established a breach of the legality of the processing (*supra*), which is closely related to the grievances of the complainant in this context.

93. For all these reasons, the Dispute Chamber will dismiss the parts of the complaint and the findings of the Inspection Service concerning the nature and number of personal data processed via the PLF (specifically in light of the principle of minimal data processing), as well as the retention periods applied to the personal data (principle of storage limitation), for reasons of opportunity and in accordance with Article 100 § 1, 1° WOG.

II.3. The information obligation, the exercise of rights by data subjects, and the accountability obligation

II.3.1. Breach of Article 12.1 GDPR – clear and precise information

a) Position of the Inspection Service

94. The Inspection Service finds that the privacy statement of the PLF is unclear and difficult to navigate, in violation of Article 12.1 GDPR. Thus, the Inspection Service states that the information provided

56 CJEU Judgment of December 14, 2023, *Natsionalna agentsia za prihodite*, C-340/21, §31.

57 Reply conclusion of the respondent, *inter alia*, para. 49, see also footnote 24.

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Information is formulated in an excessively long and technical-legal manner, without a table of contents. Terms such as “contact tracing,” “EWRS,” and “NFP” are used without explanation, and there is inconsistent language (e.g., alternating “data” vs. “personal data”). As a result, the information is not “in a concise, transparent, understandable, and easily accessible form and in clear and simple language” as required. This lack of clarity and unambiguity violates the principle of transparency laid down in Article 12.1 GDPR according to the Inspection Service.

b) Position of the Complainant

95. The complainant does not take a specific position on this matter.

c) Position of the Respondent

96. The respondent disputes that the privacy statement was unclear based on Article 12.1 GDPR.

According to her, it was necessary to refer to specific legislation and articles (such as ministerial decrees) to transparently indicate the legal basis. She argues that everyone is expected to know the

law, making legal references justified.

97. In the meanwhile amended privacy statement, she has added further explanations regarding the mentioned regulations. Regarding the use of technical terms, the respondent argues that concepts such as “contact tracing,” “EWRS,” and “NFP” were by now generally known to the public due to ongoing communication campaigns during the COVID pandemic.

98. The respondent has indeed clarified certain terms and made the terminology more consistent in the new version (always “personal data” instead of alternating “data”).

d) Assessment of the Disputes Chamber

99. The GDPR requires that information be understandable to the average user. The guidelines of WP29 regarding transparency clarify:

“The requirement that information must be ‘understandable’ means that the information must be able to be understood by an average member of the intended audience. Understandability is closely related to the requirement to use clear and simple language.”⁵⁸

100. Vague or technical formulations and inconsistent terms are contrary to the principle of transparency since privacy statements must not contain legal or technical jargon and must be unambiguous.⁵⁹

58 Article 29 Data Protection Working Party (WP29), guidelines on transparency in accordance with Regulation (EU) 2016/679, version April 11, 2018, available at:

https://www.edpb.europa.eu/system/files/2023-09/wp260rev01_nl.pdf, §9 (“endorsed” by the EDPB at the plenary session of May 25, 2018).

59 Ibid., §13.

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101. The Disputes Chamber finds, based on the findings of the Inspection Service, a violation of Article 12.1 GDPR. During the relevant period, the information provided on the PLF was not in clear and simple language: the Inspection Service rightly points out that a number of terms – such as EWRS and NFP – were insufficiently framed in the privacy statement. The fact that the respondent subsequently simplified the privacy statement does not negate that it originally fell short.

102. Given the principle of transparency (Article 5.1.a GDPR) and Recital 39 GDPR, which requires that information be easily accessible and understandable, the Disputes Chamber rules that Article 12.1 GDPR has been violated. Later improvements do not detract from this, as the situation at the time of the complaint's submission is relevant for the assessment.

103. However, the Disputes Chamber believes that the context of the information provision is relevant in this case. Although it is true that the PLF had already been in use for a few months at the time of the Inspection Service's investigation, and thus personal data processing was taking place in that context, it is also true that the respondent had to fulfill a number of obligations – also in light of data protection legislation. The respondent, as evidenced by the submitted documents, made efforts to provide information as timely and accurately as possible. The respondent's counsel states that, in this context, the work of a privacy statement is “never finished.”⁶⁰

104. Although a violation can indeed be established, the Disputes Chamber recalls the context (including the efforts and cooperation of the respondent); it is unreasonable to impose a heavy sanction for not correctly explaining certain terms or for insufficiently clarifying a legal provision.

105. For all these reasons, the Disputes Chamber proceeds to reprimand for the violation of Article 12.1 GDPR.

II.3.2. Article 12.6 GDPR – additional identification when exercising rights

a) Position of the Inspection Service

106. According to the Inspection Service, the respondent hinders the exercise of rights of data subjects by systematically imposing unnecessary additional requirements, in violation of Article 12.6 GDPR. Specifically, the Inspection Service states based on the privacy statement that each request from a data subject requires that they provide a scan or copy of their identity card and a signature, even when there is no prior concrete doubt about the identity of the requester.

60 Minutes of Hearing Disputes Chamber, p. 7.

107. The Inspection Service emphasizes that Article 12.6 GDPR obliges the data controller to facilitate the exercise of rights and only to request additional information to confirm someone's identity in case of reasonable doubt. The standard request for identity cards without concrete grounds is seen by the Inspection Service as an unjustified barrier that amounts to a violation of Article 12.6 GDPR.

b) Complainant's Position

108. The complainant does not take a specific position on this matter.

c) Respondent's Position

109. The respondent states that requesting an identity document is justified and proportional in the exercise of rights. They point out that Article 12.6 GDPR allows for additional information to be requested to confirm the identity of the requester when necessary. According to the respondent, their actions were intended to protect the data against improper access or alterations by third parties. The respondent clarifies at the same time that the new privacy statement specifies that an identity document is not systematically requested, but only if necessary in case of doubt.

d) Assessment by the Dispute Chamber

110. The systematic requirement of a copy of the identity card cannot be assumed in all cases and at all times. Article 12.6 GDPR only allows for additional identification requirements if there are "reasons" to "doubt" the identity of the requester. Without specific indications of misuse, the standard request for an identity document is disproportionate.

111. The EDPB has emphasized in its guidelines 1/2022 regarding the right of access that verification procedures must be proportionate and must not create excessive barriers.⁶¹

112. In this case, the data controller indicated through its privacy statement that it applied this (more stringent) verification procedure to every data subject at all times, which contradicts Article 12.6 GDPR (and also considering the obligation to facilitate the rights of data subjects under Article 12.2 GDPR), as the Inspection Service rightly points out. A less intrusive verification method (e.g., verification via the email address used in the application or a unique code) may suffice in certain cases.

⁶¹ EDPB, Guidelines 01/2022 on the rights of data subjects – right of access, v. 2.1, March 28, 2023, available at: https://www.edpb.europa.eu/system/files/2024-04/edpb_guidelines_202201_data_subject_rights_access_v2_nl.pdf, specifically section 3.3 regarding the proportionality assessment concerning the authentication of the requester.

The respondent has furthermore adjusted its practice, which illustrates that it initially went too far.⁶²

113. For that reason, the Dispute Chamber establishes a violation of Article 12.6 GDPR, for which it will proceed to reprimand the respondent.

II.3.3. Article 13.1 GDPR – Adequacy of Provided Information

a) Position of the Inspection Service

114. The Inspection Service states that the information provision in the PLF is incomplete, resulting in a violation of Article 13.1 GDPR. Firstly, the contact details of the data controller are missing in the original privacy statement. Article 13.1.a GDPR, however, requires the identity and contact details of the data controller to be provided.

115. Secondly, there is no precise enumeration of the recipients or categories of recipients of the personal data. Instead, vague terms such as "health authorities" and "NFP" (National Focal Point) were referred to, which the Inspection Service considers too general. Article 13.1.e GDPR requires that at least the categories of recipients be communicated, preferably as specifically as possible.

116. The Inspection Service finds the general terms used insufficiently transparent: undefined groups or acronyms do not make it clear to the citizen who specifically has access to their personal data. Thus, the information obligation in the sense of Article 13.1 GDPR has not been complied with.

b) Complainant's Position

117. The complainant has raised this issue, along with the problem regarding the legality of the transfer to law enforcement (*supra*) and the fact that no clear information is provided in this regard. He complains that it is unclear to whom the personal data are or may be provided via the PLF.

Furthermore, the complainant points out that the privacy statement on which the respondent relies

dates from after the events and therefore was not applicable at the time of filing his complaint and the initial phase of the procedure.

c) Respondent's Position

118. Generally, the respondent states that it took measures to improve transparency in the new version of the privacy statement. Specifically, it denies that the terms used were inadequate.

62 Reply Conclusion of the Respondent, par. 55.

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119. It is argued that Article 7 of the (new) privacy statement clearly and accurately lists all parties involved in data sharing. In her synthesis conclusion, the respondent points to various receiving parties and the legal basis for this.

120. There are cooperation agreements and legal provisions that regulate the transfer to Sciensano, federated entities (for contact tracing, testing, quarantine), local authorities, and police services (enforcement) and the National Focal Point (international contact tracing).

121. The respondent emphasizes that each recipient is mentioned in the privacy statement or through reference to legal sources, and that their role is clearly defined (among other things, through an agreement between joint controllers).

d) Assessment of the Disputes Chamber

122. The recipients or categories of recipients must be communicated to data subjects in accordance with Article 13.1.e GDPR.⁶³ This is particularly important when using an instrument such as the PLF, which is mandatory for a significant share of the traveling population of Belgium. While state authorities may believe that the transfers of personal data may be necessary, individual data subjects naturally have the right to maintain control over their personal data, in line with the objective of the fundamental right to data protection enshrined in Article 8 of the EU Charter of Fundamental Rights.

123. A privacy statement must at a minimum identify the data controller and mention the recipients (or categories of recipients) of the data. In this case, that information was insufficient: the responsible authority was not clearly named, and the designation of recipients was too vague.

124. The respondent only provided complete information and clarifications after the facts and the present complaint, which illustrates that Article 13.1 GDPR was not complied with at that time.

125. The Disputes Chamber therefore rules that there is a violation of Article 13.1.e GDPR: the missing contact information of the data controller and the insufficiently specific designation of recipients violate the information obligation of Article 13.1 GDPR. For this reason, the Disputes Chamber will proceed to reprimand the respondent.

II.3.4. Article 13.2 GDPR – Adequacy of Additional Information

a) Position of the Inspection Service

63 See also, *mutatis mutandis*, regarding information about those recipients CJEU of January 12, 2023, *Österreichische Post*, C-154/21.

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126. The Inspection Service identifies several shortcomings regarding the additional information required by Article 13.2 GDPR. For instance, the original information provision did not mention that the data subject has the right to data portability, while Article 13.2.b GDPR explicitly prescribes that the data subject must be informed of their right to receive or have their data transmitted.

127. Additionally, the information on how the data subject can exercise their rights was inadequate. Furthermore, there was a lack of mention that the data subject can lodge a complaint with a supervisory authority other than just the Belgian Data Protection Authority, while Article 13.2.d GDPR requires that the data subject be informed of their right to lodge a complaint with a supervisory authority.

128. Finally, the Inspection Service indicates that there was insufficient information about the mandatory nature of certain data provisions and the possible consequences of non-provision. This is also mandatory information according to Article 13.2.e GDPR: it must be indicated whether the provision of data is legally or contractually required and what happens if someone does not provide certain data.

b) Position of the Complainant

129. The complainant does not take a specific position on this matter.

c) Position of the Respondent

130. The respondent has acknowledged in her response that improvements were necessary and that these have since been implemented in a new privacy statement. She indicates that in the older version, for example, only the Belgian Data Protection Authority was referenced, but that now a list of all competent supervisory authorities in the EU is included “to better facilitate data subjects from another EU member state in exercising their rights.” Furthermore, the respondent states that she has taken the feedback regarding the mention of the rights of data subjects to heart: she has drafted a new, improved privacy statement that takes into account the points raised by the Inspection.

d) Assessment of the Disputes Chamber

131. The failure to provide the information listed in Article 13.2 GDPR constitutes a violation, unless the data subject already has that information (Article 13.4 GDPR; which is not applicable here). Article 13.2.b GDPR requires that data subjects be informed of all their relevant rights (access, rectification, erasure, objection, restriction, and data portability). Article 13.2.e GDPR obliges clarification of whether the provision of data is mandatory and what the consequences are if someone does not do so. None of these requirements were met at the time.

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of the investigation sufficiently fulfilled, except regarding Article 13.2.d GDPR, as the defendant did indeed mention the possibility of filing a complaint with the GBA.

132. The Dispute Chamber notes that the privacy statement has always mentioned and aimed to mention the most common and practically relevant informational elements. The defendant has also followed up on the findings of the Inspection Service. The Dispute Chamber proceeds to reprimand for the breach of Article 13.2 GDPR.

II.3.5. Article 9 WVP – specific national obligations regarding the processing of health data

a) Complainant's grievance

133. The complainant explicitly referred to Article 9 WVP. He argues that there are deficiencies in the information provided regarding the processing of health data via the PLF. Firstly, according to him, information about the measures taken in accordance with Article 9 WVP in the processing of such special data is lacking.

134. Secondly, there is no clear list or description of the categories of persons who have access to this health data.

135. Thirdly, there is general uncertainty about who has access to this data, which, according to the complainant, amounts to a violation of the information obligation concerning special data.

136. The complainant thus makes it clear that the special protection that should be afforded to health data is, in his view, not visible: one does not know what precautions or restrictions the defendant has implemented. He also criticizes that the privacy statement on which the defendant relies dates from after the facts, meaning that possibly fewer safeguards were in place at that time. In summary: the complainant believes that Article 9 WVP has not been complied with, as the PLF processing was insufficiently transparent and shielded.

b) Defendant's position

137. The defendant formally disputes that there has been a breach of Article 9 WVP. In her synthesis, she presents several arguments:

(i) All receiving parties of the PLF data would be listed in the privacy statement.

(ii) There is an agreement between joint data controllers (under Article 26 GDPR) for the PLF processing, in which the role of each is clearly defined. This indicates an organizational measure to regulate responsibility.

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(iii) The defendant refers to the legal basis of the PLF and the associated data sharing: she mentions a cooperation agreement dated August 25, 2020, a ministerial decision dated July 24, 2020 (Article 10), as well as later agreements (March 24, 2021, July 14, 2021). According to the defendant, this shows that the processing is anchored in legislation that also contains safeguards and conditions.

(iv) The defendant invokes the GDPR itself: Article 6.1.c GDPR (legal obligation) and Article 9.2(i)

GDPR (processing health data for reasons of public interest in the field of public health) as legal grounds. These provisions require national legal measures to protect the rights of data subjects – the defendant insinuates that the mentioned ministerial decisions and agreements comply with this.

(v) The defendant states that the transfer of PLF data occurs lawfully and proportionately, in line with Article 5.1 GDPR, and is always based on a legal or conventional basis.

(vi) Finally, the defendant emphasizes that the recipients of the data are clearly listed (in the privacy statement and the Cooperation Agreements), including the reason why each recipient receives the data. Example: Sciensano for policy/prevention (no research), federated entities for contact tracing, local authorities/police for enforcement, NFP for international alerts. With this, the defendant attempts to demonstrate that she has indeed considered transparency and necessity – core concepts in Article 9 WVP.

c) Assessment by the Dispute Chamber

138. Article 9 WVP imposes specific national requirements regarding information obligations when processing health data. However, these requirements coincide with the requirements of Article 13 GDPR, particularly regarding the provision of information about the (categories of) recipients of personal data. In this case, the Dispute Chamber has already established a breach and proceeded to sanctioning. Therefore, there is no need – also considering the principle of ne bis in idem – to proceed to a separate finding of breach under Article 9 WVP, for which it now proceeds to dismiss this grievance based on Article 100 §1, 1° WOG.

III. Publication of the decision

139. Given the importance of transparency regarding the decision-making of the Dispute Chamber, this decision will be published on the website of the Data Protection Authority.